[Public Land Order 1156]

WASHINGTON

REVOKING EXECUTIVE ORDER NO. 1713 OF FEBRUARY 24, 1913

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Executive Order No. 1713 of February 24, 1913, reserving certain unsurveyed islands in Washington for public purposes, which was revoked in part by Executive Order No. 5151 of August 30, 1929, is hereby revoked so far as it affects the remaining island withdrawn thereby, known as Victim Island in the E½, sec. 17, T. 36 N., R. 2 W., Willamette Meridian, containing approximately 6 acres.

The island is located in the San Juan Island group. The terrain is rocky and vegetation consists of a defective stand of second-growth Douglas Fir and Hemlock, with an understory of brush. There are no indications of water on the island and the soil is such as to preclude its use for agricultural purposes.

No application for the released land may be allowed under the homestead, desert-land, small tract, or any other nonmineral public-land law unless the land has already been classified as valuable or suitable for such type of application, or shall be so classified upon the consideration of an application. Any application that is filed will be considered on its merits. The land will not be subject to occupancy or disposition until it has been classified.

This order shall not otherwise become effective to change the status of the released land until 10:00 a. m. on the 35th day after the date of this order. At that time the said lands shall become subject to application, petition and selection, subject to valid existing rights, the provisions of existing withdrawals, the requirements of applicable laws, and the 91-day preference-right filing period for veterans and others entitled to preference under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284), as amended.

Veterans' preference-right applications under the said act of September 27, 1944, may be received on or before 10:00 a. m. on the 35th day after the date of this order, and those covering the same lands shall be treated as though simultaneously filed at that time. Applications filed under the act after that time and during the succeeding 91 days shall be considered in the order of filing. Applications by the general public under the public-land laws, including the mineral-leasing laws, received on or before 10:00 a. m. on the 126th day after the date of this order shall be treated as though simultaneously filed at that time, where the applications are for the same land; otherwise, priority of filing shall govern.

Inquiries concerning the island shall be addressed to the Manager, Land Office, Bureau of Land Management, Spokane, Washington.

FRED G. AANDAHL,
Assistant Secretary of the Interior.

MAY 27, 1955.

[F. R. Doc. 55–4423; Filed, June 2, 1955; 8:45 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF AGRICULTURE

Agricultural Research Service

[9 CFR Part 76]

VESICULAR EXANTHEMA

INTERSTATE MOVEMENT OF SWINE

Notice is hereby given in accordance with section 4 of the Administrative Procedure Act (5 U. S. C. 1003), that, pursuant to the provisions of sections 1 and 2 of the act of February 2, 1903, as amended (21 U. S. C. 111–113, 120), it is proposed to amend § 76.30 of the regulations restricting the interstate movement of swine and certain swine products because of vesicular exanthema, a contagious, infectious, and communicable disease (9 CFR, 1954 Supp., 76.30) in the following respects:

1. Subparagraph (2) of paragraph (c) of § 76.30 would be amended to read:

(2) Prior to January 1, 1956, swine which have been fed raw garbage but which, for a period of 30 consecutive days just prior to the interstate movement, have been fed cooked garbage or other feeds to the exclusion of any raw garbage, which have been kept on a premise on which no raw garbage has been fed to swine during such 30-day period, and which have not come in contact with swine fed any raw garbage during such 30-day period, may be moved interstate under this subpart from a non-quarantined area, if accompanied by a certificate signed by an inspector of the Branch, an inspector employed by the State of origin of the swine, or other inspector who may be approved by the Chief of Branch for this purpose, stating that, as far as he has been able to determine, such swine have been fed cooked garbage or other feeds to the exclusion of any raw garbage for a period of 30 consecutive days just prior to the interstate movement and that a visual inspection of all swine on the premises of origin just prior to movement therefrom disclosed no indication of vesicular exanthema. The provisions of subparagraph (1) of this paragraph shall not be applicable to such movements.

2. Subparagraph (2) of paragraph (d) of § 76.30 would be amended to read:

(2) Prior to January 1, 1956, swine products derived from swine which had been fed raw garbage but which, for a period of 30 consecutive days just prior to slaughter, had been fed cooked garbage or other feeds to the exclusion of any raw garbage, which had been kept on a premise on which no raw garbage had been fed to swine during such 30-day period, and which had not come in contact with swine fed any raw garbage during such 30-day period, may be moved interstate under this subpart from a non-quarantined area. The provisions of subparagraph (1) of this paragraph shall not be applicable to such movements.

The proposed amendment would extend to January 1, 1956, the provisions contained in § 76.30 (c) (2) and (d) (2) of the regulations, which constitute exceptions to the provisions of § 76.30 (c) (1) and (d) (1) pertaining to the interstate movement from non-quarantined areas of swine fed raw garbage, and carcasses, parts and offal derived from such swine. Under the latter provisions swine fed any raw garbage may not be moved interstate except to an approved establishment for immediate slaughter and special processing, and carcasses, parts and offal derived from such swine, may not be moved interstate except to an approved establishment for special processing.

The provisions of § 76.30 (c) (2) and (d) (2) were included in the regulations to be effective until January 1, 1954, and were extended to July 1, 1955 (B. A. I. Order 383 (Revised) and amendments 15 and 32), because of the limited availability of satisfactory garbage-cooking equipment. This situation has been steadily improving. It is believed that after the termination of the proposed extension to January 1, 1956, there will be no necessity for any further extension of such provisions. Thereafter, swine fed any raw garbage, and carcasses, parts and offal derived from such swine, may be moved interstate from non-quarantined areas only for immediate slaughter and special processing, or special processing, in accordance with the provisions of § 76.30 (c) (1) and (d) (1) of the regulations.

Any person who wishes to submit written data, views, or arguments concerning the proposed amendment may do so by filing them with the Chief, Animal Disease Eradication Branch, Agricultural Research Service, United States Department of Agriculture, Washington, D. C., within 15 days after publication hereof in the FEDERAL REGISTER.

Done at Washington, D. C., this 31st day of May 1955.

[SEAL] M. R. CLARKSON,
Acting Administrator,
Agricultural Research Service.

[F. R. Doc. 55–4455; Filed, June 2, 1955; 8:53 a. m.]